Louisa County Water Authority
Board of Directors
May 8, 2024

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. Bob Hardy; Mr. David Kies; Mr. Byron Wilson; Mr. Bo Morgan and Mr. Tom Filer

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Mr. Manning Woodward, Louisa County Board of Supervisors and Mr. Zanas Talley, Whiteford, Taylor & Preston LLP

A. Call to Order

Chairman Foster called the meeting to order at 6:02 pm.

1. ADOPTION OF THE AGENDA

Chairman Foster asked if there were any changes or additions to the agenda. The General Manager asked to correct Item 8. – B. should have been A. Mr. Hardy made a motion to adopt the agenda as amended. The motion was seconded by Mr. Morgan and carried 7-0.

B. Presentations

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTEES:

A. APRIL 10, 2024 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURES REPORT – APRIL 2024
B. APPROVAL OF DISBURSEMENTS – APRIL 2024
C. CONSTRUCTION FUND – APRIL 2024
D. SUMMARY STATEMENT OF REVENUE
E. DETAILED STATEMENT OF REVENUE
F. SUMMARY STATEMENT OF EXPENSES
G. DETAILED STATEMENT OF EXPENSES
H. INVESTMENTS
I. SEWER EXPENSE & REVENUE
J. NORTHEAST CREEK: PAID CONNECTION FEES AND ALLOCATIONS
K. ZION CROSSROADS: PAID CONNECTION FEES AND ALLOCATIONS

The Board reviewed the Consent Agenda, Treasurer's Report and Third Quarter Statements.

Upon completion of the review, Mr. Kies made a motion to approve the Consent Agenda, Treasurer's Report and Third Quarter Statements. The motion was seconded by Mr. Smith and carried 7-0.

E. Old Business

4. UPDATE – JAMES RIVER WATER PROJECT

The permit has been issued and financing is in place.

A few items to button up: 1) archeological work at the pump station site continues, ground penetrating radar has been used in the process; 2) the purchase pf the nutrient offset credits, stream crossing mitigation credits and the wetlands mitigation credits ($579,750).

Construction will begin with three crews on the four-mile water line at three different locations, once the pipe is received from Alabama. The pipe is currently being manufactured and will arrive in the next two weeks.

5. NORTHEAST CREEK WATER TREATMENT PLANT

A. NECWTP SEDIMENTATION BASIN IMPROVEMENTS SLUDGE-VAC-SYSTEM (UPDATE)

The two bids received for the Northeast Creek Water Treatment Plant Sedimentation Basin Improvements project were reviewed by Dewberry Engineers, Inc. Upon completion of their review their recommendation was to award the contract to Waco, Inc. Procurement concurred and Waco, Inc. was provided the Notice to Proceed, with their Base Bid Amount of $1,069,745.

B. 4th OPERATOR

The two trainees, both soon to be college graduates, accepted positions as Water Operator Trainees. On Friday, May 3, 2024, we hired a Class I Water Operator.

6. ZION CROSSROADS WELL SYSTEM UPDATES

A. SPRING CREEK #1 & #2

All items have been completed and the inspection is being scheduled for Spring Creek #1. Once the meter is received for Spring Creek #2, the process will be finalized, and it will be brought online.

7. LOUISA REGIONAL WWTP

On March 21, 2024, the Department of Environmental Quality performed an inspection of the Louisa Regional Wastewater Treatment Plant. The report findings were received on April 24, 2024. All items mentioned in the report have been corrected, clarified or documentation provided as required.

8. ZION CROSSROADS WWTP

A. GET CAPTIVE, LLC

The Ceriodaphnia infestation / outbreak has been eradicated. Only to be followed by a significant green color to the wastewater. The UV disinfection can't penetrate the color to kill the E-coli. Violations have occurred and the Zion Crossroads WWTP staff are frustrated. The Certified Letter sent will be discussed in closed session.

After meeting with Dewberry Engineers, Inc. on Thursday, April 25, 2024, they suggested setting up samplers to pull from manholes throughout the system. The samplers were set up to pull 24-hour composite samples. Staff collected the samples and found green colored wastewater at the manhole behind the Dollar Tree and the Duncin Donuts / El Mariachi strip mall. Maintenance staff began pulling off manhole lids and found the colored influent coming from the Aqua Express Car Wash. Staff met with the owners on Monday, May 6, 2024, to discuss how they are going to remove the color before discharging into the collection system. They immediately turned off the car washing conditioner that they believe is causing the color issue. The conditioner is not harmful to the wastewater treatment operations, except at the UV disinfection system. The UV lights can't penetrate the color to properly disinfect and kill E. coli effectively.

9. UPDATE – NEW BRIDGE WWTP

A. FINAL FILTER RENTAL

The process of moving forward with the filter rental / pilot test is currently on hold while Dewberry Engineers, Inc. looks at what would be required for the New Bridge WWTP permit to be increased to 30,000 gpd. The developer would like to proceed with the addition of thirty new townhomes. Staff does not believe the Department of Environmental Quality will allow the step-up in the permit to occur until steps are taken to bring the facility into consistent compliance.

The Board discussed concerns regarding the continued TSS and ammonia violations. The General Manager stated that the process to add the final filter polit test could proceed, but preferred to wait until after the May 16, 2024 meeting with DEQ and to see what Dewberry recommends, to prevent spending funding on equipment that could possibly not be needed. Additionally, staff have been performing jar testing to try to find a chemical addition that would aid in settling out the TSS better. Polymer seems to be working the best, but the type of polymer needed was not included on our request for bid. We are currently working with the supplier to see if they can provide the needed polymer or if we will need to seek pricing from another supplier.

B. EFFLUENT LINE

The divers were performing the annual inspection of the effluent line on Thursday, April 25, 2025, when they found that the pipe had been struck and separated. The repairs were made on May 2, 2024. The plant was not discharging at the time the break was found and did not begin discharging until Monday, May 6, 2025.

The divers confirmed that the repair is holding today, and the buoys are scheduled to be installed on Friday, May 10, 2024.

10. LEAD SERVICE LINE INVENTORY

The Authority has not received two access agreements to date. The office staff continue to work with the homeowners to get the final two access agreements. The maintenance staff members continue to complete the field work as scheduling permits; so far three copper lines and two poly lines have been identified.

11. NORTHEAST CREEK DAM (SOUTH ANNA DAM #22) AND BOWLERS MILL DAM (SOUTH ANNA #2)

A. LOW-LEVEL VALVES – EXERCISE

On Thursday May 2, 2024, Bander / Smith was onsite to exercise the low-level valves on the Northeast Creek Dam (South Anna #22) and Bowlers Mill Dam (South Anna #2).

Northeast Creek Dam – all valves (high, middle, and low) opened and closed as designed. During the dive the diver found a trash rack had come off the middle intake. It was staff's understanding that the trash rack was reattached during Bander / Smith's last site visit. The bolts do not appear to be new. Authority staff are looking back to confirm that the reattachment of the trash rack was approved, and Bander / Smith is checking to see if this was an oversight on their part.

Bowlers Mill Dam – the high and middle valves open and closed as designed. The low-level valve would not open. Bander / Smith was able to completely close the valve to the cast iron pipe that supplies water to the pump station, which in turn provides water to ODEC. The part of the cast iron pipe that was able to be observed by the diver appears to be in good shape, with some pitting, but no apparent leaks or seepage. From now on, when ODEC needs water, they will be required to notify the Authority. Staff will need to access the intake structure in Bowlers Mill Reservoir to open the valve to provide water. Bander / Smith indicated that a good indication of the cast iron line beginning to fail would be water coming out of the pipe leading to the duck bill outfall below the dam. Pressure off the line will prevent the line from blowing out.

12. ADDITION OF WATER TO ST. FRANCIS

A. TOWN OF MINERAL APPROVAL

Nothing new to report.

13. UTILITY STANDARDS

The Town of Louisa has provided their desire to participate in the updating of the Utility Standards. Dewberry Engineers, Inc. is working on gathering data.

14. CONTINGENCY PLANNING

A. ZION CROSSROADS WASTEWATER COLLECTION SYSTEM CAPACITY EVALUATION UPDATE

Mary Johnson, Program Manager (part-time) is working on providing all additions to the sewer collection system at Zion Crossroads since 2018. Amy Dunivan has been working on compiling user data.

15. DISCUSSION – PRELIMINARY BUDGETS

A. SUMMARY STATEMENT OF INCOME
B. DETAILED STATEMENT OF INCOME
C. SUMMARY STATEMENT OF EXPENSES
D. DETAILED STATEMENT OF EXPENSES
F. COMBINED STATEMENT OF INCOME AND EXPENSES
G. REPAIR AND REPLACEMENT OF CAPITAL EQUIPMENT LISTING
H. COMBINED STATEMENT OF INCOME AND EXPENSES WITH ADDITIONAL OPTION

I. FY2025 LOUISA COUNTY WATER AUTHORITY – BUDGET SUMMARY

The Board reviewed the budgets and talked over several scenarios in preparation of the June 12, 2024 Public Hearing.

16. RATE DISCUSSION

A. PUBLIC HEARING – JUNE 12, 2024

The Public Hearing Notice was reviewed by the Board. The General Manager emphasized that the public hearing could not start until 6:30 pm, due to the meeting room being used for a neighborhood meeting by Community Development.

B. RATE COMPARISON

The Board reviewed the rate comparison.

F. New Business

17. RESOLUTION RECOGNIZING WARREN HUNTER MARTIN FOR HIS SERVICE TO LOUISA COUNTY WATER AUTHORITY

The Board reviewed the drafted Resolution recognizing Hunter Martin for his 20 years of service.

18. LOUISA COUNTY WATER AUTHORITY / TOWN OF LOUISA – CONSUMER CONFIDENCE REPORT

The Virginia Department of Health – Office of Drinking Water approved the Louisa County Water Authority / Town of Louisa - Consumer Confidence Report for distribution. The direct link to the Consumer Confidence Report will be included on the May 2024 water bills.

19. ZION CROSSROADS – CONSUMER CONFIDENCE REPORT

The Virginia Department of Health – Office of Drinking Water approved the Zion Crossroads – Consumer Confidence Report for distribution. The direct link to the Consumer Confidence Report will be included on the May 2024 water bills.

20. INDUSTRIAL PARK STANDPIPE / ELEVATED TANK – ALTITUDE VALVE OVERHAUL OR REPLACE

The Industrial Park Standpipe and Elevated Tanks altitude valve is leaking. East Coast Valve Services, Inc. was contacted to provide a price to overhaul the altitude valve and a second price to replace it. The altitude valve is original equipment.

Overhaul: mobilize, dissemble, clean and inspect parts for defects, lap seat and disc for 360 degree contact, polish spindle and check for run out, straighten as needed, chase and tap all threaded areas, and reassemble valve in system with new soft goods kit (we may have the soft goods kit in inventory, but would need to replace it if we rebuild) $9364.

Replace: remove old valve, clean flanges on pipeline, install new valve in system with new gaskets and fasteners, provide and install new valve. $15,041. The Board reviewed the proposals.

Upon completion of the review Mr. Wilson made a motion to approve the replacement of the altitude valve at a cost of $15,041. The motion was seconded by Mr. Hardy and carried 7-0.

G. Reports

H. General Manager's Report

● Hunter Martin retired on May 2, 2024.

● **April levels**: At the end of April 2024, the static well levels were down 5.5 feet from the end of March 2024 levels. From April 2023 to April 2024, the well levels are down approximately 10.8 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are down approximately 10.6 feet from the end of March 2024 levels. From April 2023 to April 2024, the well levels are down approximately 23.2 feet.

As of May 2, 2024, the Department of Environmental Quality Drought website is indicating normal conditions exist for precipitation, groundwater, and reservoir levels in the Northern Piedmont Region. A drought watch is in effect for stream flow.

● Letter to the fisherman.

● The current past-due listing is down to $6,338.58 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $9,361.84.

● Mr. Filer and the General Manager met with Mr. Manning Woodward, Louisa County Board of Supervisors, Mayor Garland Nuckols, Town of Louisa and Liz Nelson, Town Manager to discuss the proposed 24% increase in water and sewer rates.

● The General Manager participated in a community meeting with approximately 10 Town of Louisa citizens to discuss the proposed 24% increase in water and sewer rates. In both meetings, participation in the public hearing scheduled for June 12, 2024, at 6:30 pm, at the County Administration Building, First Floor meeting room was encouraged.

I. Committees

A. PERSONNEL COMMITTEE

The Personnel Committee will be meeting at the end of May or the first of June to finalize some changes to a few policies and review the salary ranges.

B. 2X2 MEETING

The next 2X2 meeting is scheduled for June 13, 2024, from 2:00 – 3:30 pm. The meeting will be held in the Administration Conference Room.

J. Short Notice Items

K. Closed Session:

A. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

Mr. Smith made a motion to close the regular open meeting and immediately reconvene in closed session. The motion was seconded by Mr. Kies and carried 7-0.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at 7:55 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	YES

The motion was carried 7-0.

Next meeting date - The next business meeting is scheduled for June 12, 2024.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Filer made a motion to adjourn at 7:56 pm. The motion was seconded by Mr. Kies and carried 7-0.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY